

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC V.
OCEAN NETWORK EXPRESS PTE. LTD., ORIENT OVERSEAS CONTAINER
LINE LIMITED, OOCL (EUROPE) LIMITED, EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#011982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., AND
YANG MING MARINE TRANSPORT CORPORATION

COMPLAINANT NBG'S MOTION TO SCHEDULE A STATUS CONFERENCE
AND RESPONDENTS' OPPOSITION

Complainant Nielsen & Bainbridge, LLC, on behalf of itself and its subsidiaries and affiliates (collectively "NBG" or "Complainant"), by counsel, file this motion to respectfully request that the Presiding Officer schedule a status conference to discuss matters pending in this case. For the reasons set forth below, Respondents ONE and OOCL take the position that a status conference to discuss discovery is premature. The remaining Respondents join in that position for the reasons articulated by ONE and OOCL.

FACTS

The Presiding Officer entered an order on Motions to Sever and Motions for a More Definite Statement on June 18, 2025, and the parties submitted supplemental briefing as directed on July 7, 2025. While awaiting a final decision from the Presiding Officer on the supplemental briefings submitted by the parties in July, NBG filed its Motion for Leave to Initiate Discovery or, in the Alternative, to Schedule a Status Conference on August 15, 2025. Respondents ONE and OOCL both filed oppositions to this motion on August 22, 2025.

NBG acknowledges the recent halt in the Federal Maritime Commission's ("FMC") operations due to the recent government shutdown, and respectfully requests a status conference with the Presiding Officers and all parties to discuss the pending motions regarding severance and discovery. The Parties met on December 9, 2025 to discuss this Motion and the need for a status conference.

REQUEST TO SCHEDULE A STATUS CONFERENCE

In light of the foregoing, NBG respectfully moves for the Presiding Officer to schedule a status conference to discuss whether there is any remaining information that the Parties can provide to allow for swift adjudication of the pending motions. The Initial Decision in this matter is currently due on January 8, 2026, which is 24 days from today's date. Despite Complainant's requests to proceed with discovery in order to attempt to have an Initial Decision by the current due date, no direction has been provided on how to move this matter forward. Complainant finds this request to be appropriate and timely due to the length of time matters have been currently pending.

ACCORDING TO RESPONDENT ONE, A STATUS CONFERENCE IS PREMATURE

Under the circumstances, Respondent ONE does **not** join in this request for a status conference. The aforementioned, pending motions to sever¹ and initiate discovery² significantly impact how this proceeding will continue, whether separate proceedings are necessary, how pleadings will need to change, and the scope of discovery overall. As a matter of efficiency and a practical matter, the Parties should wait on the resolution of these two sets of motions, which are already fully briefed, in order to have an informed discussion about discovery in the future.

RESPONDENT OOCL JOINS RESPONDENT ONE'S POSITION

OOCL fully concurs and joins Respondent ONE's position as outlined above, specifically that a status conference prior to the Presiding Officer's ruling on the pending motions would be premature and inefficient. Should the Motion nevertheless be granted, OOCL further notes the Commission's procedural rules require that requests for relief be made only by written motion. 46 C.F.R. 502.69

CONCLUSION

For the foregoing reasons, Complainant NBG respectfully requests that the Presiding Officer grant a status conference to discuss pending motions, a potential schedule, and resolution of any outstanding matters for the Presiding Officer. Respondents' respectfully submit that a status conference is premature under the circumstances.

¹ See motion to sever papers and related Order, FMC Docket 25-02, Doc. Nos. 13, 17, 21, 23, and 24-27.

² See NBG motion to initiate discovery and opposition, FMC Docket 25-02, Doc. Nos. 28-30.

Dated: December 16, 2025

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon Respondents Ocean Network Express Pte. Ltd. (“ONE”), Orient Overseas Container Line Limited, OOCL (Europe) Limited (together with Orient Overseas Container Line Limited, “OOCL”), Evergreen Line Joint Service Agreement (FMC#011982), Evergreen Marine Corp. (Taiwan) Ltd. (“Evergreen Taiwan”), Evergreen Marine (UK) Limited (“Evergreen UK”), Italia Marittima SpA (“Italia”), Evergreen Marine (Hong Kong) Ltd. (“Evergreen Hong Kong”), and Evergreen Marine (Singapore) Pte. Ltd. (“Evergreen Singapore” and collectively with the Evergreen Line Joint Service Agreement, Evergreen Taiwan, Evergreen UK, Italia, and Evergreen Hong Kong, “Evergreen”), and Yang Ming Marine Transport Corporation by emailing a copy to their counsel of record listed below:

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